

IN THE COUNTY COURT OF THE TWELFTH JUDICIAL CIRCUIT
IN AND FOR MANATEE COUNTY, FLORIDA
COUNTY CIVIL

COLONIAL MANOR MHC HOLDINGS, LLC,
Plaintiff,

vs.

Case No.: 2025-CC-003927

KATHERINE SHANNON, PATRICK MARCUS
ST. CLAIR and ANY UNKNOWN
PARTY(s) IN POSSESSION,
Defendants.

**JUDGMENT AFTER TRIAL FOR POSSESSION AND DAMAGES WITH RESERVATION
FOR DETERMINATION OF ATTORNEY FEES**

THIS CAUSE came on to be heard on Plaintiff's Complaint pursuant to Fla. Stat. §723.061 for possession of real property in a mobile home park, for damages and other relief. Present for the Plaintiff was Plaintiff's park manager, Cheryl Peake and counsel for the Plaintiff. Defendant, PATRICK MARCUS ST. CLAIR, filed with this Court a response to the complaint which did not present any cognizable defenses. Present for Defendant, KATHERINE SHANNON, was Thomas Moseley, Esq. for, who, on January 14, 2026, filed a limited appearance and a Response to Motion for Default and Eviction. Neither KATHERINE SHANNON nor PATRICK MARCUS ST. CLAIR appeared. This cause was duly noticed on January 6, 2026 for trial on January 14, 2026. This cause of action is governed by Chapter 723 of Florida Statutes, distinguishing it from Chapter 83 residential tenancy law.

1. A mobile home park owner applying for the removal of a mobile home owner, tenant, or occupant or a mobile home shall file, in the county court in the county where the mobile home lot is situated, a complaint describing the lot and stating the facts that authorize the removal of the mobile home owner, tenant, or occupant or the mobile home. **The park owner is entitled to the summary procedure provided in s. 51.011, and the court shall advance the cause on the calendar. Fla. Stat. §723.061(3).**

Thus, this action is procedurally subject to Fla. Stat. §51.011.

2. Plaintiff's claim is for possession of a mobile home lot within a mobile home park in which the mobile home park owner is the owner of the real property and common grounds, and in which the tenant rents the lot from the mobile home park owner, in this case Lot #45 of Colonial Mobile Manor, located at 900 9th Avenue East, Palmetto, in Manatee County, Florida.
3. Plaintiff claimed and proved to the preponderance of the evidence that Defendant, KATHERINE SHANNON, leased lot #45 of Colonial Mobile Manor pursuant to a lease and subject to the Rules and Regulations of Colonial Mobile Manor.

4. Plaintiff claimed and proved to the preponderance of the evidence that KATHERINE SHANNON breached paragraph 3 of the Rules and Regulations of Colonial Mobile Manor by allowing an un-approved resident to reside in Lot #45 of Colonial Mobile Manor.
5. Plaintiff claimed and proved to the preponderance of the evidence that upon discovering that KATHERINE SHANNON was allowing an unapproved person to reside with her in lot 45, KATHERINE SHANNON was notified by Plaintiff that she was in violation of Rule 3 of the Rules and Regulations of Colonial Mobile Manor by allowing unauthorized persons to reside in Lot #45 (identified by the Plaintiff to be defendant PATRICK MARCUS ST. CLAIR) and that KATHERINE SHANNON had the obligation to cure the violation of Rule 3 by removing all unapproved persons from Lot #45 of Colonial Mobile Manor, giving her the statutorily required number of days to cure the violation, and advising her that if she failed to cure the violation, she was subject to termination of her right to reside in Colonial Mobile Manor, and to be evicted.
6. Plaintiff proved to the preponderance of the evidence that KATHERINE SHANNON did not timely (or even as of the date of the trial) cure the violation of the park rule, as a result of which the Plaintiff properly terminated the lease of KATHERINE SHANNON and notified her, giving her at least 30 days' notice pursuant to Fla. Stat. §723.061(1)c(2) prior to directing her to vacate the premises.
7. Plaintiff served Defendant KATHERINE SHANNON, the unapproved resident identified as PATRICK MARCUS ST. CLAIR and ANY UNKNOWN PARTIES IN POSSESSION.
8. On October 24, 2025, a Defendant, purportedly PATRICK MARCUS ST. CLAIR on behalf of his mother KATHERINE SHANNON, deposited the sum of \$2,837.73 into the Registry of the Court pursuant to Fla. Stat. §723.063, based upon Plaintiff's claim in Count II for unpaid rent.
9. Plaintiff proved to the preponderance of the evidence that KATHERINE SHANNON owes lot rental to the Plaintiff in the sum of \$4,384.00 as of January 14, 2026.
10. Based upon the evidence adduced in trial, Plaintiff has prevailed on Count I and Count II of its Complaint.
11. As a result of the evidence presented, Plaintiff is entitled to its costs and attorney fees pursuant to Fla. Stat. §723.068.
12. Plaintiff is further entitled to the sum paid by the Defendant into the Registry of the Court, which, to satisfy procedures of the Clerk of the Court, will be directed in a separate order by this Court. Defendant, KATHERINE SHANNON, will receive credit for the amount paid into the Registry of the Court from the judgment owed by her to the Plaintiff.
13. The Court is obligated to follow the law based upon the uncontradicted facts presented to it. The Court:

ORDERS AND ADJUDGES:

As to count I, the Plaintiff is granted a writ of possession of the premises identified as 900 - 9th Avenue East, Lot #45, Palmetto, Florida 34221, however, this writ shall not be issued until TEN (10) calendar days after the rendition of this Judgment.

Plaintiff shall be entitled upon execution of the writ of possession to the removal of the Defendants by the Manatee County Sheriff from the subject property and from all of Lot #45 of the Park, and the Plaintiff shall also upon execution of the writ of possession be entitled to change the locks on the home pursuant to its right to store the home as provided by Fla. Stat. §723.062(2), which reads:

At the time the sheriff executes the writ of possession, the landlord or the landlord's agent may remove any personal property, including the mobile home, found on the premises to or near the property line or, in the case of the mobile home, into storage. § 723.062, Fla. Stat..

The Sheriff is authorized to assist the Plaintiff in removing the Defendants from the premises located above and putting the Plaintiff in possession after first conspicuously posting the Writ of Possession for twenty-four (24) hours, together with any personal property, from the Property. Defendants shall be forever removed and barred from entry onto the Property forevermore.

Plaintiff shall be entitled upon execution of the writ of possession to the removal of the Defendants by the Manatee County Sheriff from the subject home and from all of Lot #45 in the park, and the Plaintiff shall also upon execution of the writ of possession be entitled to change the locks on the home pursuant to its right to store the home as provided by §723.062(2), Florida Statutes. By changing the locks, Plaintiff is electing to store the home on the lot as allowed by the statute. Once the locks have been changed, Plaintiff is not required to provide a copy of the new keys to Defendants.

As to Count II, Plaintiff is entitled to judgment against the Defendant, KATHERINE SHANNON, for the sum of \$4,384.00 less the sum of \$2,837.73, plus the costs and attorney fees incurred by the Plaintiff, for which the Court reserves jurisdiction for Plaintiff to prove by separate hearing. This determination of attorney fees is only as to entitlement, not to amount.

The Hearing on the Award of costs and attorney fees to be incorporated into the Judgment in this cause shall be set by separate order from the Court.

ALL FOR WHICH LET EXECUTION ISSUE.

DONE AND ORDERED in Chambers at Bradenton, Manatee County, Florida.



eSigned by HEATHER DOYLE, County Judge 01/21/2026 10:06:44 Y+6ptbZh

HEATHER DOYLE
COUNTY JUDGE

cc: William C. Price, III, Esq. pleadings@wcpricelaw.com
Katherine Shannon, Patrick Marcus St. Clair and Any Unknown Party(s) in Possession; 900
9th Avenue East; Lot #45 Palmetto, Florida 34221
Thomas Moseley, Esq. tom@bradentonattorneyatlaw.com